

INTERVIEW | AITZAZ AHSAN

"A stable Parliament can't be built on the debris of the judiciary"

Aitzaz Ahsan, president of the Supreme Court Bar Association and former interior minister in the PPP regime, who has been under house arrest after he led one of the most successful public protests against the sacking of the higher judiciary by President Pervez Musharraf, spoke to Managing Editor

RAJ CHENGAPPA at his Lahore residence. Excerpts:

Q. What should come first: the reinstatement of the sacked judges or a parliamentary decision on the independence of the judiciary?

A. After the sacking of the Chief Justice by Musharraf, it has become impossible for judges to be independent. Unless the order is reversed, unless the lawyers' demands are met, the judiciary cannot be truly independent. For the next 10 generations, Pakistan would be a police state.

Q. PPP's Asif Zardari says that restoration is a small step in the larger issue of independence of the judiciary, which the Parliament needs to legislate on.

A. Since we cannot have a strong and stable Parliament or a democracy constructed on the debris of the judiciary, the action of the dictator against judges has to be reversed first. Then the parliamentary process can be initiated.

Q. The two winning parties have agreed that a parliamentary committee should discuss the restoration issue. Does that meet your demand?

A. We are satisfied with that in a limited sense. But our major demand is that the judges be reinstated. If we were to accept the legitimacy of Musharraf's actions, it would mean accepting that the chief of the army can impose Emergency for one day—as Musharraf did for six weeks—suspending the Constitution and after grafting amendments into it, say now you have to lump it. That is an unacceptable concept. Musharraf had no authority to amend the Constitution. Anyone who says that it is now for the Parliament to undo what Musharraf has done is in fact accepting the initial legitimacy of his actions. That cannot be countenanced.

Q. So an executive order could remove Musharraf?

A. There are two ways of looking at this. Since the sacking of the judges was illegal in the first place and they were forcibly denied access to their courtrooms, even an executive order is not required to remove Musharraf. But even if the sacking is treated as a lawful executive order, then all that is required for withdrawing it is another executive order. The Parliament does not have to step in.

Q. Is it fair to ask the same judges that Musharraf sacked to arbitrate on his legitimacy again?

A. Musharraf has been sacked by the people of Pakistan already. But if he has to seek office, he has to go to the same judges. His own government's case throughout has been that bias cannot be a plea against Supreme Court judges.

elected legislators also drew criticism from civil society groups and political observers. Even Justice (retired) Tariq Mahmood and human rights campaigner Asma Jahangir, both of whom have been prominent in the lawyers' movement, issued sharp rebuttals to Ahsan's March 9 call, saying that the elected Parliament should be given time lest the "train of democracy is derailed once again". Ahsan and APDM then withdrew their calls, although they vowed to keep up the pressure.

Amidst this brewing crisis, one man no one has heard from is President Musharraf. Sources say that he contemplated resigning right after the elections but was encouraged to stay on by the Americans, who promised to get the political parties to play



BATTLE FOR RIGHTS: Ahsan (left) and Imran Khan

ball. A reinstatement of the sacked judges—particularly the Chief Justice who he has publicly called "the scum of the earth"—would surely be the final straw for him. Even if the judiciary isn't immediately restored, Musharraf's prospects do not look very bright. PPP and PML(N) are talking of "restoring the balance" between the powers of the President and the Parliament—shorthand for clipping Musharraf's remaining powers. Whatever remains of his King's party is disintegrating. PML(Q) Secretary General Senator Mushahid Hussain has announced that he would support PPP and PML(N) if they brought in a bill to take away the President's powers to dismiss the assemblies. If Musharraf decides to bow out, the judicial crisis may not look so daunting.